

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Matthew Chaves	Team: Squad #02	CCRB Case #: 201608737	☐ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Saturday, 10/15/2016 11:00 PM	Location of Incident: 66th Precinct stationhouse	18 Mo. SOL 4/15/2018	Precinct: 66
Date/Time CV Reported Mon, 10/17/2016 12:55 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Mon, 10/17/2016 12:55 PM

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. SGT Edward Ryan	03745	907232	066 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Norman Cox	26453	945622	066 PCT
2. POM Frank Santangelo	05598	959198	066 PCT
3. SGT John Chavatte	02997	934619	066 PCT
4. SGT Steven Catalano	02986	929857	066 PCT
5. POM Aurie Dias	28976	952674	066 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Edward Ryan	Discourtesy: Sergeant Edward Ryan spoke discourteously to § 87(2)(b) [REDACTED]	A . Unsubstantiated

Case Summary

On October 17, 2016, § 87(2)(b) filed the following complaint via the Call Processing System. In his original complaint, § 87(2)(b) described two separate incidents that occurred at two separate locations on October 15, 2016. In the first incident, § 87(2)(b) s § 87(2)(b) son, § 87(2)(b) was stopped by police officers. § 87(2)(b) was not present for this, and only learned about it when § 87(2)(b) told him about it. In response, § 87(2)(b) went to a Precinct stationhouse and spoke to officers. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

At approximately 11 p.m. on October 15, 2016, § 87(2)(b) went to the 66th Precinct stationhouse in Brooklyn by himself with the intent to speak to police officers about his son having been stopped earlier in the evening. § 87(2)(b) spoke to an officer about trying to identify the officers who had stopped his son. § 87(2)(b) then spoke to Sergeant Edward Ryan of the 66th Precinct in a further attempt to learn about his son having been stopped. When § 87(2)(b) asked Sergeant Ryan for his name, Sergeant Ryan replied “Sergeant Ryan, now get the fuck out of here.” (**Allegation A**) No arrest or summonses were issued to § 87(2)(b)

The investigation found no video footage of this incident.

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation during his interview on October 27, 2016. § 87(2)(b)
 - As per the New York City Comptroller’s Office, no Notice of Claim has been filed in regards to this incident as of the date of this report.
 - [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- § 87(2)(b)
- § 87(2)(b)
- § 87(2)(b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint involving § 87(2)(b) § 87(2)(b)
 - Sergeant Ryan has been a member of the NYPD for 22 years, and has 12 prior allegations in five cases with four substantiated allegations in one case. In CCRB case number 9601576, two allegations of physical force, one allegation of refusal to provide name and/or shield, and one allegation of discourtesy were substantiated. Sergeant Ryan received Command Discipline for these substantiated allegations. § 87(2)(g)
- § 87(2)(b)

Findings and Recommendations

Allegation A – Discourtesy : Sergeant Edward Ryan spoke discourteously to § 87(2)(b)

§ 87(2)(b) was interviewed at the CCRB on October 27, 2016. He missed photo viewing appointments scheduled for December 19, 2016, and December 27, 2016. Sergeant Ryan was interviewed on December 9, 2016. Police Officer Norman Cox of the 66th Precinct was interviewed on December 16, 2016. Police Officer Frank Santangelo of the 66th Precinct was interviewed on December 19, 2016. Sergeant Steven Catalano of the 66th Precinct was interviewed on January 3, 2016. Police Officer Aurie Dias of the 66th Precinct was interviewed on January 3, 2016. Sergeant John Chavatte of the 66th Precinct was interviewed on January 4, 2016.

§ 87(2)(g)

§ 87(2)(b) All six interviewed officers had no recollection of the incident and claimed not to recognize § 87(2)(b)

No documentary evidence was found to indicate that § 87(2)(b) was present at the 66th Precinct stationhouse on October 15, 2016. No officer recorded his presence in their memo book, the 66th Precinct does not maintain a stationhouse visitor log (Board Review 04), § 87(2)(b) was not arrested or issued a DAT or summons, there is no mention of him or a similar incident in the Command Log (Board Review 02), and no video recording of the incident was obtained.

§ 87(2)(b) described the officer who allegedly cursed at him as an approximately 5'8" tall white male in his 40s with a medium build and light-colored hair, and wearing a white-shirted uniform. While this description matches Sergeant Ryan's pedigree information (listed in his MOS photo as a § 87(2)(b) white male with greying hair) (Board Review 06), and § 87(2)(b) stated that the officer in question self-identified as "Sergeant Ryan," § 87(2)(g)

§ 87(2)(g). In addition, the Command Log for the incident stationhouse and date indicates that Sergeant Ryan was signed in as the desk officer from 8:00 p.m. to 9:00 p.m. (Board Review 02). Other than this time period, Sergeant Ryan was assigned as the Patrol Supervisor and would have likely been out in the field and assigned to a motor vehicle. § 87(2)(g)

§ 87(2)(g) Furthermore, the assigned desk officer for the incident tour was Sergeant John Chavatte of the 66th Precinct, § 87(2)(g) (listed in his MOS photo as a § 87(2)(b) white male with greying hair) (Board Review 06).

The investigation interviewed all of the officers listed as assigned to stationhouse duties on the Precinct Command Log and Roll Calls (Board Review 03) from the estimated incident time frame. The six interviewed officers had the following assignments during the estimated incident time frame: Sergeant Ryan was the Tour 3 patrol supervisor, Police Officer Cox was Sergeant Ryan's operator, Police Officer Santangelo was the Tour 3 telephone switchboard operator,

Sergeant Chavatte was the Tour 3 desk officer, Sergeant Catalano was the Tour 1 desk officer, and Police Officer Dias was the Tour 1 stationhouse clerk (assigned to both the telephone switchboard and the stationhouse property room). The Interrupted Patrol Log for the 66th Precinct Stationhouse shows no units signing into or out of the stationhouse near 11 p.m. (Board Review 05).

Finally, § 87(2)(b) missed two scheduled photo-viewing appointments. As a result, the investigation was unable to have § 87(2)(b) confirm the identification of Sergeant Ryan as the subject officer via a photo-viewing.

§ 87(2)(g)

It is therefore recommended that
Allegation A be unsubstantiated.

Squad: 2

Investigator:	_____	_____	_____
	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date